

25STLC04882 25STLC04882

County: los-angeles

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Case Number: 25STLC04882 Hearing Date: June 25, 2026 Dept: 26

TENTATIVE RULING:

Defendant Melody

Etezadi's Motion for Leave to Amend Answer is granted. Defendant is to file the Amended Answer within ten days.

Analysis:

On June 25, 2025, Plaintiff

Allison Valentine ("Plaintiff") filed

the instant action against Defendant Melody Etezadi ("Defendant") for (1) breach of contract; (2) conversion; (3) fraud; (4) violation of

Pen. Code § 484; and (5) money had and received. The Complaint alleges that Defendant misrepresented her right to sub-lease her apartment to Plaintiff, and after Plaintiff transferred funds to Defendant, repudiated the sub-lease and refused to return the money. (Compl., ¶¶5-14.)

On December 5, 2025,

Defendant, in propria persona, filed a verified Answer to the Complaint, verified Cross-Complaint, a Motion to Strike, and a Motion for Judgment on the Pleadings. The Answer and the Cross-Complaint both include the allegation that "[p]rior to entering into the Agreement, Cross-Complainant obtained written authorization from her landlord expressly permitting a two-month sublease for June and July 2025." (Answer, ¶15; Cross-Compl., ¶1.)

On February 3, 2025,

the Court denied Defendant's Motion to Strike; on February 19, 2026, the Court denied Defendant's Motion for Judgment on the Pleadings. (Minute Order,

02/19/26.) On February 6, 2026, Defendant substituted in Attorney Arya Azizi, Esq. and on February 25, 2026, filed the instant Motion for Leave to Amend Answer. Plaintiff filed an opposition to the Motion on May 1, 2026 and Defendant replied with evidentiary objections on May 7, 2026.

The Motion initially came for hearing on May 14, 2026, at which time the Court continued the matter to give Plaintiff an opportunity to address new evidence and arguments raised in Defendant's reply papers. Plaintiff filed a sur-reply on June 4, 2026.

Discussion

The request for leave to amend is brought pursuant to Code of Civil Procedure sections 576 and 473, subdivision (a), which provides that "[t]he court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading..." (Code Civ. Proc., § 473, subd. (a)(1).) A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added and where, and when the new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines of the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (Cal. Rules of Court, Rule 3.1324, subds. (a), (b).)

The policy favoring amendments and resolving all matters in the same dispute is "so strong that it is a rare case in which denial of leave to amend can be justified. [Citation.]" (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations], this policy should be applied only 'where no prejudice is shown to the adverse party . . . [citation]. A different result is indicated 'where inexcusable delay and probable prejudice to the opposing party' is shown. [Citation]." (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487.) Where a proposed amendment opens an entirely new substantive area of injury on the eve of trial without any explanation for why the major change had not been

made long before, denial of leave is appropriately ordered in the court's discretion. (Id.)

Defendant moves for

leave to amend the Answer by changing the allegation that Defendant obtained a written authorization to sublease the apartment, to a verbal authorization.

Also, Defendant seeks to add two affirmative defenses that she did not have any intent to defraud Plaintiff and that any representations Defendant made were true and accurate. (Motion, Azizi Decl., ¶¶5-7; Exh. A at p. 3:18-24.)

The initial moving

papers do not include a supporting declaration that sets forth explicitly what allegations are to be added and where, or the effect of the proposed amendment.

(See Motion, Azizi Decl., ¶¶6-7.) Nor do the initial moving papers include specifications by reference to pages and lines of the allegations that would be deleted and added. In reply, Defendant's declaration does address the effect, necessity and propriety of the amendments, date of discovery and reasons for delay of the proposed amendment. (Reply, Etezadi Decl., ¶¶4-8.) Specifically, Defendant seeks to change the initial allegation of a written authorization from the landlord to sublease the apartment to that of a verbal authorization. This is sufficient for purposes of complying with the mandatory Rules of Court.

In opposition, Plaintiff

argues that an amendment that seeks to contradict an earlier pleading may only be allowed "upon very satisfactory evidence that the party has been deceived or misled, or that his pleading was put in under a clear mistake as to the facts."

(Citing *Tognazzi v. Wilhelm* (1936) 6 Cal.2d 123, 127.) Plaintiff

contends that their discovery demonstrates that no written authorization was provided to Defendant to sub-lease the apartment and that the document Defendant submitted with the Motion to Strike that purports to be a written authorization dated May 1, 2025, is a forgery of the landlord's signature.

(Opp., pp. 2:17-5:8.) In support, Plaintiff relies on the declaration of a handwriting expert regarding the May 1 document, to which Defendant brings evidentiary objections. The Court sustains the evidentiary objections to the Black declaration and makes no finding on the issue of whether the May 1 document is a forgery.

Defendant's supporting reply

declaration included new evidence regarding the effect, necessity and propriety of the proposed amendment, date of discovery of the new information, and the

reasons for delay in seeking leave to amend. Specifically, Defendant declares that when she drafted the Answer, in propria persona and with the assistance of ChatGPT, she incorrectly used the term “written authorization” to describe the verbal permission she obtained from her landlord about subleasing the apartment, which was then later memorialized in the May 1 writing. (Reply, Etezadi Decl., ¶¶4-8.) Upon hiring an attorney, Defendant came to understand that the phrase she used in the Answer and other pleadings was not accurate and required amendment. (Id. at ¶¶9-10.) Defendant also attaches deposition testimony to the same effect. (Reply, Azizi Decl., Exh. 1.)

The parties disagree whether these circumstances fall under the rule set forth in *Tognazzi v. Wilhelm* (1936) 6 Cal.2d 136, which holds that an amendment contradicting an admission made in the original pleadings may only be made “upon very satisfactory evidence that the party has been deceived or misled, or that his pleading was put in under a clear mistake as to the facts.” (*Tognazzi v. Wilhelm* (1936) 6 Cal.2d 123, 127.) The Court finds that for purposes of this Motion, Defendant has sufficiently provided evidence through her declaration and testimony of a mistake as to the facts based on her lay understanding of what constituted a “written authorization.” Plaintiff is not precluded from challenging the credibility of Defendant’s explanations at trial. The Court is not prepared to treat the statements in the initial pleading as binding admissions.

The Court grants Defendant leave to amend the Answer as set forth in the proposed First Amended Answer.

Conclusion

Defendant Melody Etezadi’s Motion for Leave to Amend Answer is granted. Defendant is to file the Amended Answer within ten days.

Plaintiff to give notice.